

2:00 PM LINE 4

25-CLJ-01923

ELG CIRCLE, LLC VS. MONICA CURTIS, ET AL

ELG CIRCLE, LLC
MONICA CURTIS

VIN A. FICHTER
YURI VORONIN

Defendant and Cross-Complainant Girl Scouts of Northern California's Motion for Reclassification From Limited Civil Jurisdiction to Unlimited Civil Jurisdiction

TENTATIVE RULING:

Defendant/Cross-Complainant Girl Scouts of Northern California's ("GSNC") unopposed "Motion for Reclassification from Limited Civil Jurisdiction to Unlimited Civil Jurisdiction," filed Jan. 28, 2026, is GRANTED. (Code Civ. Proc. § 403.040.)

Cross-Complainant GSNC should have requested re-classification in its October 2025 Amended Cross-Complaint, and should have paid the reclassification fee at that time. (Code Civ. Proc. § 403.030.) Nonetheless, under § 403.040, the Court finds good cause to reclassify the case. GSNC shall pay the reclassification fee. (Code Civ. Proc. § 403.040(c).) The Court Clerk SHALL RECLASSIFY the case as an unlimited civil jurisdiction case upon payment by GSNC of the required fee.

On a separate note, upon review of the parties' filings to date, including the Amended Cross-Complaint, the Court notes that this case may be particularly suitable to alternative dispute resolution. Cross-Defendants Monica Curtis et. al.'s March 4, 2026 Case Management Conference statement states that the parties agreed to participate in mediation, and were (at that time) scheduling a mediation for June 2026. The Court Orders that the parties meet and confer and file a joint update with the Court on the status/progress of mediation. The Court has concerns that the parties have not been meaningfully communicating with each other to discuss a resolution to this dispute.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

2:00 PM LINE 5

26-CIV-00606 SHC HALF MOON BAY, LLC, A DELAWARE LIMITED LIABILITY COMPANY VS. MAXIM
WORLD USP LLC

SHC HALF MOON BAY, LLC, A DELAWARE LIMITED LIABILITY COMPANY MAXIM WORLD USP LLC	DANIELLA MIKHAEL-FARD LYN R AGRE
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Lyn R. Agre's Motion to be Relieved as Counsel

TENTATIVE RULING:

On August 5, 2026, counsel for Maxim World USP LLC appeared ex parte, asking to be relieved. At the ex parte hearing, counsel represented to the court that counsel had notified the client of the ex parte using what counsel knew to be the client's current address and email.

The Court nevertheless denied the ex parte request, but issued the following Order:

"The court *sua sponte* made and granted a motion shortening time on a motion to be relieved. The motion shall be filed on August 6, 2026 and comply with Rule 3.1362 and utilize forms MC-51, 52 and 53. Any opposition shall be filed by August 12, 2026 at 1 p.m. Any reply may be filed by August 14, 2026 at 1 p.m. Courtesy copies of all filings related to this motion must be emailed to Dept11@sanmateocourt.org."

While it does not appear that counsel provided the necessary courtesy copies, counsel otherwise complied with this Order and the Court CONTINGENTLY grants the motion to be relieved (effective upon the filing of the proof of service of the signed order). The court notes that counsel filled out the MC-52 incorrectly in that counsel does not explain in 3(b)(1)(d) HOW counsel confirmed that the email and address were current. Nevertheless, as noted above, counsel assured the court at the ex parte hearing that it was. Accordingly, the court Orders that counsel file a brief supplemental declaration confirming HOW counsel knows those addresses are current. Assuming that contingency is satisfied, the Court will execute the MC-53 once a courtesy copy of that filed declaration is emailed to Dept11@sanmateocourt.org.
